

[11 & 12 GEO. 5.] *Dorward's House of* [Ch. cxxiv.]
Refuge (Montrose) Order Confirmation Act, 1921.



CHAPTER cxxiv.

An Act to confirm a Provisional Order under A.D. 1921.
the Private Legislation Procedure (Scotland)
Act 1899 relating to Dorward's House of Refuge
(Montrose). [8th November 1921.]

WHEREAS His Majesty's Secretary for Scotland has
made the Provisional Order set forth in the
schedule hereunto annexed under the provisions of the
Private Legislation Procedure (Scotland) Act 1899 and it 62 & 63 Vict.
is expedient that the said Order should be confirmed by c. 47.
Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows:—

1. The Provisional Order contained in the schedule Confirmation
hereunto annexed shall be and the same is hereby of Order in
confirmed. schedule.

2. This Act may be cited as the Dorward's House Short title.
of Refuge (Montrose) Order Confirmation 1921.

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S C H E D U L E.

DORWARD'S HOUSE OF REFUGE (MONTROSE).

Provisional Order for terminating the existing Board of Managers of Dorward's House of Refuge for the Destitute in Montrose for constituting and incorporating a new Board of Managers for transferring the rights and powers of the existing body to the new Board for regulating the appointment and retiral of members of the Board for modifying the provisions of the Deed of Constitution and the Act of Incorporation for enlarging and defining the scope of the charity and the powers and duties of the Board of Managers and for regulating the discharge of inmates who may cease or have ceased to be proper objects of the charity and for other purposes.

WHEREAS by disposition and assignation dated 16th February 1838 (hereinafter referred to as "the disposition") the now deceased William Dorward merchant in Montrose (hereinafter referred to as "the Founder") conveyed to certain persons and their successors to be elected as therein provided as trustees or managers the sum of £10,000 for the purpose of erecting and endowing an institution to be called "Dorward's House of Refuge for the Destitute":

And whereas the number of trustees and managers was by the disposition declared to be twenty-four and provision was made for the annual retirement of ten of their number and the election of successors of those retiring (a) by the Founder and after his death by the trustees acting under his trust-disposition and settlement (b) by the magistrates and town council of Montrose (c) by the kirk session of Montrose and (d) by the heritors of the landward part of the parish of Montrose:

And whereas the object of the said Institution was by the disposition declared to be "for the reception maintenance care and employment of such a number of poor infirm and indigent old persons and orphan children or children who have been deserted or abandoned by their parents whether legitimate or illegitimate belonging to

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“ the town and parish of Montrose including old worn-out A.D. 1921.
“ and decayed pauper fishermen or their widows or orphan
“ children belonging to the village of Ferryden but no
“ other part of the parish of Craig as the size of the
“ building will admit the managers having power to
“ exact from such fishermen or their widows or orphan
“ children such board as they may consider reasonable ”

. . . And it was further declared “ that the proper
“ objects of charity to be admitted to the benefit of the
“ said Institution shall be selected by the trustees or
“ managers according to their infirmities poverty and
“ necessities without any regard to their religious senti-
“ ments or opinions only that the oldest and most indigent
“ shall have the preference and that the most necessitous
“ orphans and those who have been deserted by their
“ parents shall be selected for admission so as to rescue
“ them from begging idleness vagrancy and vice and
“ prevent them from acquiring vicious and dissolute
“ habits and the commission of crime but no person
“ labouring under insanity idiocy or any other mental
“ disease or subject to epilepsy or having any venereal
“ disease fever or infectious complaint shall be received
“ or admitted into the Institution and in all cases of
“ admission the persons so admitted shall be upon the
“ poor's roll of the parish of Montrose or the parish of
“ Craig ” :

And whereas it was further provided by the disposition
“ that the said Institution shall not be held or construed
“ deemed or taken to be a poor's house under any of the
“ existing laws now in force or any laws to be hereafter
“ enacted for the support maintenance and reception of
“ the parochial poor but that the said Institution shall
“ remain separate and distinct from such parochial poor's
“ house and under the sole and exclusive superintendence
“ management and control of the said trustees or managers
“ hereinbefore named and those to be hereafter elected
“ and chosen and it shall not be in the power of the
“ magistrates and council of Montrose and the kirk
“ session and heritors of the parish of Montrose as the
“ legal guardians of the poor of the town and parish
“ thereof to assume demand or take any control charge
“ or superintendence of the said Institution or to interfere
“ in the management thereof from all which they are
“ here expressly prohibited and discharged but as the said

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A.D. 1921. “ Institution must ultimately materially lessen the charge
“ and expense for the provision and support of the poor
“ of the town and parish of Montrose I have given the
“ said sum of 10,000*l.* for the endowment of the said
“ House of Refuge under the express understanding that
“ the magistrates and town council kirk session and
“ heritors of the said parish shall contribute annually
“ during my lifetime out of the funds assessed for the
“ poor the sum of four hundred pounds sterling at least
“ towards the expenses of the said Institution and that
“ after my decease they shall contribute annually such a
“ sum together with the interest of the said endowment
“ and other available funds as they shall deem necessary
“ to meet the expenses of the said Institution but such
“ annual aid shall not entitle the said magistrates and
“ council kirk session and heritors as guardians of the
“ poor to any further charge or management of the said
“ Institution beyond what is herein already before
“ provided to and conferred on them” :

And whereas the Founder thereafter made certain further gifts and donations to the managers for the benefit of the said Institution amounting in all to 6,000*l.* :

And whereas the Founder died on 10th April 1848 leaving a trust disposition and settlement dated 31st January 1839 and ten codicils relative thereto dated respectively 14th August 1839 1st July 1840 27th August 1840 20th March 1841 24th June 1843 28th August 1844 27th January 1845 23rd February 1846 28th May 1846 and 1st April 1848 and two letters of instructions dated 22nd November 1847 and by the said trust disposition and settlement he directed his trustees to pay to the managers of the said Institution the residue of his estate which amounted to the sum of 14,131*l.* 18*s.* 11*d.* :

And whereas the amount of the said residue was duly paid over to the managers :

And whereas in the years 1838 and 1839 the managers erected a building known as “ Dorward's House of Refuge for the Destitute ” within the town of Montrose and have maintained and carried on the same as an Institution (hereinafter called “ the Institution ”) for the reception and maintenance of aged and infirm men and women and orphans and deserted children qualified as provided by the deed of constitution as hereinafter in this Order defined :

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And whereas the magistrates and town council kirk session and heritors of the parish of Montrose and thereafter the parochial board of the said parish as coming in their stead in virtue of the Poor Law (Scotland) Act 1845 did also in terms of the conditions annexed to the said bequests and donations contribute annually various sums out of the funds assessed under the last-mentioned Act during the lifetime of the said William Dorward and afterwards towards the expense of the Institution but no payment as provided in the deed of constitution has been made by the said parochial board since the month of October 1848: A.D. 1921.

And whereas in the year 1851 the managers applied for and obtained a Private Act of Parliament (14 & 15 Vict. c. xvii.) (in this Order referred to as "the Act of 1851") by which they were incorporated by the name and style of "The Managers of Dorward's House of Refuge for the Destitute in Montrose" and their powers were enlarged and defined:

And whereas the managers have since carried on the Institution and received free inmates therein from the parish of Montrose and the village of Ferryden and the Institution has proved a great benefit to poor persons in the locality:

And whereas about the year 1885 the managers found that their income was becoming inadequate to meet the expenditure of the Institution and in order to utilise the accommodation of the Institution and to supplement the said income they began to receive and have since received as inmates thereof persons upon the respective rolls of poor of other parishes to which they are chargeable as paupers and from which parishes the managers received payment of the charges incurred for the maintenance of such persons:

And whereas subsequent to the year 1885 and more particularly since the passing of the Old Age Pensions Acts 1908 to 1919 the managers have also received as inmates of the Institution persons in receipt of such pensions and other persons who themselves or with the assistance of relatives have paid to the managers the charges incurred for their maintenance:

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And whereas many of such last-mentioned persons would but for such old age pensions legislation have been proper objects of the charity and in any case owing to the increased expenses of maintenance and management it was deemed by the managers impossible without the contributions received for such persons from other parishes and boarders to maintain the Institution for the benefit of those for whom it was primarily designed :

And whereas it is expedient that the scope of the charity should be extended from the objects designated by the Founder so far as may be necessary to meet the change of circumstances and the requirements of the present time and that any such extension should be settled and regularised for the future :

And whereas the administration of the charity according to the deed of constitution and the Act of 1851 directly affects the public bodies having the superintendence and relief of the poor and any extension of the scope of the charity may be prejudicial to the poor of the parishes of Montrose and Craig and to the parish council of the parish of Montrose in the execution of its duties under the poor law :

And whereas the public bodies appointed by the Founder to elect twelve of the managers were the bodies which at the date of the deed of constitution were legally vested with the guardianship and relief of the poor of Montrose but have long since been relieved of these duties :

And whereas the parish councils of the parishes of Montrose and Craig have now the duty of superintendence and relief of the legal poor in their respective parishes from which the primary objects of the Founder's charity are selected :

And whereas it is expedient that the parish councils of the parishes of Montrose and Craig should have representation on the Board of Managers :

And whereas it is expedient that after providing accommodation in the Institution for the primary objects of the charity accommodation therein should be provided for other poor persons of the parish of Montrose and the village of Ferryden and for other persons belonging to the parish of Montrose who desire to avail themselves of the Institution while making payment for their main-

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tenance therein and thereafter for the legal poor of other parishes which shall pay for the maintenance of such persons in the Institution : A.D. 1921.

And whereas it is expedient that the parish council of the parish of Montrose should be safeguarded from any prejudice which may arise to them by the extension under this Order of the scope of the charity by introducing into the said parish indigent persons who have no legal settlement therein under the poor law but who may in certain circumstances acquire a settlement therein :

And whereas it is expedient that inmates of the Institution who have not been regularly admitted under the provisions of the deed of constitution and who are not eligible to be inmates under the extended powers conferred by this Order should be discharged and that no persons who cease to be proper objects of the charity should continue thereafter to be inmates of the Institution :

And whereas it is expedient to make provision to avoid the inconvenience arising from the retiral of a number of managers on the second Monday of November in each year before their successors assume office :

And whereas it is expedient to terminate the existing Board of Managers and to constitute and incorporate a new Board and to transfer the rights and powers of the existing body to the new Board and to regulate the appointment and retiral of members of the Board and to modify the deed of constitution and the Act of 1851 and to enlarge and define the scope of the charity and the powers and duties of the Board of Managers and to regulate the discharge of inmates who may cease or have ceased to be proper objects of the charity :

And whereas the purposes aforesaid cannot be effected without an Order from the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as *Dorward's House of Refuge (Montrose) Order 1921.* Short title.

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Commence-
ment of
Order.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same.

Interpre-
tation.

3. In this Order unless there be something in the subject or context repugnant to such construction "the Institution" means Dorward's House of Refuge for the Destitute in Montrose "the disposition" means the disposition and assignation by the deceased William Dorward merchant in Montrose dated 16th February 1838 "the deed of constitution" means the disposition the trust disposition and settlement dated 31st January 1839 and ten codicils relative thereto dated respectively 14th August 1839 1st July 1840 27th August 1840 20th March 1841 24th June 1843 28th August 1844 27th January 1845 23rd February 1846 28th May 1846 and 1st April 1848 executed by the said deceased William Dorward and the two letters of instructions by him dated 22nd November 1847 "the Board" means the Board of Managers of the Institution as reconstituted and incorporated by this Order "managers" means members of the Board "the existing Board" means the Board of Managers as incorporated by the Act (14 and 15 Victoria chapter xvii.) "existing managers" means members of the existing Board and "the Act of 1851" means the said Act.

Incorpo-
ration of a
new Board
of Managers.

4. From and after the 15th day of December 1921 the existing Board shall be dissolved and the existing managers together with the managers to be appointed as hereinafter provided shall be the Board of Managers of the Institution and are hereby incorporated by the name of "The Managers of Dorward's House of Refuge for the Destitute in Montrose" and by that name shall be a body corporate with perpetual succession and a common seal for the purpose of administering the affairs of the Institution in accordance with the provisions of the deed of constitution the Act of 1851 as these are amended and extended by this Order and this Order and with power to purchase hold and dispose of lands and with all other rights powers and privileges of a corporate body and they may sue and be sued under their corporate name.

Constitution
of the new
Board of
Managers.

5. The Board shall consist of thirty-two persons (that is to say):—

(1) The twenty-four persons who are the existing managers holding office before the 15th day of

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December 1921 and their successors nominated or appointed in the same manner as the existing managers under the provisions of the disposition and the Act of 1851: A.D. 1921.

(2) Seven persons from their own number to be appointed by the parish council of the parish of Montrose as hereinafter provided:

(3) One person from their own number to be appointed by the parish council of the parish of Craig as hereinafter provided.

6. At all meetings of the Board nine managers shall be a quorum. Quorum.

7. The provisions of the deed of constitution as amended by the Act of 1851 and by this Order shall continue to apply to the election or appointment of the twenty-four managers referred to in paragraph (1) of the section of this Order the marginal note of which is "Constitution of the new Board of Managers" and shall regulate their retiral and the election of persons to fill the vacancies to be caused by such retiral. Provisions in deed of constitution to apply to certain managers on new Board.

8. The persons to be appointed managers by the parish councils of the parishes of Montrose and Craig shall be appointed and shall retire and their places as managers shall be filled in accordance with the following provisions (that is to say):— Provisions as to appointment &c. of managers by parish councils.

(A) At a meeting of the parish council of the parish of Montrose to be held during the first ten days of December 1921 that parish council shall appoint seven persons of their own number to be managers of whom four shall be appointed to hold office as managers until the second Monday of December 1923 and three shall be appointed to hold office as managers until the second Monday of December 1924 and the clerk of that parish council shall make intimation of these appointments to the clerk of the existing Board before the 15th day of December 1921:

(B) At a meeting of the parish council of the parish of Craig to be held during the first ten days of December 1921 that parish council shall appoint one person of their own number to be a manager who shall hold office as manager until the second

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Monday of December 1924 and the clerk of that parish council shall make intimation of this appointment to the clerk of the existing Board before the 15th day of December 1921 :

- (c) At a meeting of the parish council of the parish of Montrose to be held in October 1923 and in October each year thereafter the parish council of the parish of Montrose shall appoint of their own number managers to fill the vacancies occurring that year in their representation on the Board and the names of all managers so appointed shall be intimated by the clerk to that parish council to the clerk to the Board not later than the first week of November following and the managers to be so appointed shall retire from the Board at the expiry of two years from the second Monday of December following the times when they shall be respectively appointed to act as managers :
- (d) At a meeting of the parish council of the parish of Craig to be held in October 1924 and in October each alternate year thereafter the parish council of the parish of Craig shall appoint one of their own number as manager to fill the vacancy occurring that year in their representation on the Board and his name shall be intimated by the clerk to that parish council to the clerk to the Board not later than the first week of November following and each manager to be so appointed shall retire from the Board at the expiry of two years from the second Monday of December following his appointment :
- (e) At the general meeting of the Board to be held on the second Monday of November 1923 as prescribed by the fifth clause of the disposition and at the said meeting occurring in each year thereafter (in addition to the ten managers who shall retire from office in the manner therein set forth as amended by this Order) the managers appointed by the parish council of the parish of Montrose who retire as on the second Monday of December following shall be declared to the meeting by the chairman who shall also intimate to the meeting the names of the managers who

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have been appointed to fill the vacancies caused by the retiral of such parish council representatives : A.D. 1921.

- (F) At the general meeting of the Board to be held on the second Monday of November 1924 as prescribed by the fifth clause of the disposition and at the said meeting occurring in each alternate year thereafter (in addition to the ten managers who shall retire from office in the manner therein set forth as amended by this Order and the three managers appointed by the parish council of the parish of Montrose who retire that year in terms of this Order) the one manager appointed by the parish council of the parish of Craig who retires as on the second Monday of December following shall be declared to the meeting by the chairman who shall also intimate to the meeting the name of the manager who has been appointed to fill the vacancy caused by such retiral :
- (G) No manager who retires in terms of this Order shall be eligible to be again a manager until after the lapse of one year from his retiral. Provided that nothing in the deed of constitution the Act of 1851 or this Order shall prevent the re-election or re-appointment of a retired manager in the year following his retiral in order that he may act as manager on the lapse of one year from his retiral if eligible.

9. In the event of any manager appointed by a parish council under or in pursuance of the provisions of this Order ceasing to be a member of the parish council by which he was appointed such manager shall ipso facto be held to have then retired from the office of manager and his place shall be filled as hereinafter provided by the parish council which appointed him. Parish councillors ceasing to hold office as such to retire from the Board ipso facto.

10. Upon a vacancy occurring among the managers appointed by the parish councils by death resignation non-acceptance cesser of office of parish councillor or otherwise during the period of a manager's appointment the parish council by which the said manager was appointed shall within one month after the occurrence of such vacancy appoint another from their own number Filling occasional vacancies on the Board.

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A.D. 1921. — as a manager in his place but the person to be so appointed shall not be entitled to continue a manager longer than the person in whose place and stead he shall be appointed could have done. Provided that if the person so appointed holds office as manager for less than one year pursuant to an appointment made under this section he shall be entitled to be re-appointed by the parish council for one additional term without a break in office.

Vacancy
not to affect
powers of
Board.

11. In case any vacancy shall occur among the managers through failure of any body to elect the remaining managers shall notwithstanding that such vacancy shall continue unsupplied have full power to do and perform all matters necessary for the execution of the deed of constitution the Act of 1851 and this Order.

Removal of
disqualifica-
tions of
elected
managers.

12. Notwithstanding anything to the contrary contained in the deed of constitution or the Act of 1851 it shall be lawful for the magistrates and town council of Montrose the kirk session of Montrose and the heritors of the landward part of the parish of Montrose to appoint from their own number to supply vacancies on the Board persons who may at the time of appointment be members of more than one of these bodies.

Transfer of
property, &c.
to the New
Board.

13. Subject to the provisions of this Order and on the fifteenth day of December 1921 there shall be by virtue of this Order transferred to and vested in the Board without the necessity of any other conveyance transfer assignation or other instrument all heritable property funds moneys and all and any other property whatsoever vested or to vest in the existing Board or to which they have or shall acquire right in any manner of way together with all rights powers and duties and subject to all the obligations liabilities and debts attaching to or affecting the same.

Enlarge-
ment of the
scope of the
charity.

14.—(1) Notwithstanding anything contained in the deed of constitution or the Act of 1851 the objects of the charity shall be (First) those defined in the disposition who shall be primarily entitled to the accommodation available in the Institution and be a first charge on the free income of the trust funds and in the event of there being accommodation available in the Institution after the reception of the objects of the charity first above mentioned (Second) poor persons and orphans or poor

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children in receipt of parochial relief from the parish of Montrose and poor persons and orphans or poor children belonging to the village of Ferryden who are in receipt of parochial relief from the parish of Craig on payment (but only in the absence or insufficiency of any surplus income available from the trust funds for the maintenance of such persons or children) by the parish councils of said respective parishes of such charge as is in the opinion of the Board sufficient to defray the cost of the maintenance of each such person or child in the Institution (Third) persons or children who are not chargeable to or on the roll of poor of the parish of Montrose but who according to the law of Scotland for the time being have a settlement under the poor law within the parish of Montrose but that only on such conditions as the Board may prescribe and on payment of such charge as the Board may fix as cost of maintenance in the Institution and (Fourth) persons or children chargeable under the poor law to any parish in Scotland other than the parish of Montrose but that only on the parish council of such parish admitting liability for and agreeing to make payment of the cost of maintenance as may be fixed by the Board of such persons or children and undertaking in writing to remove such poor persons or children from the Institution and (so far as they can legally do so in any given case) furth of Montrose Parish if and when required to do so by the Board Provided that the Board shall not begin or continue to maintain any person under heads (Third) and (Fourth) hereof to the prejudice and exclusion of any object of the charity under heads (First) and (Second) hereof:

Provided further that no person labouring under insanity idiocy or other mental disease or subject to epilepsy or having any venereal disease fever or infectious complaint shall be received or admitted into the Institution or be maintained or continued therein under any of the heads above mentioned.

(2) Notwithstanding anything contained in the deed of constitution or the Act of 1851 the expression "inmates of the Institution" used in the deed of constitution and the Act of 1851 shall as from 15th December 1921 be extended to include not only pauper inmates but any persons or children admitted under the provisions of this Order.

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Discharge
of inmates
not being
proper
objects of
the charity.

15. Notwithstanding anything contained in the deed of constitution or the Act of 1851 it shall be incumbent upon the Board to discharge from the Institution every person or child who in their opinion ceases or has ceased through change of circumstances to be a proper object of the charity or whose settlement under the poor law is intimated and proved to the satisfaction of the Board by the parish councils of the parishes of Montrose or Craig respectively to have changed from the parishes of Montrose or Craig respectively to another parish unless the parish council of the parish of settlement as ascertained admits liability for the maintenance of such person or child to the parish councils of the parishes of Montrose or Craig in which case such person or child shall be treated as being eligible as an object of the charity under head (Fifth) of the section of this Order the marginal note of which is "Enlargement of the scope of the charity."

Regulation
of the term of
office of the
managers.

16. Notwithstanding anything to the contrary contained in the deed of constitution or the Act of 1851 the managers (including those to be appointed by parish councils pursuant to the provisions of this Order) falling to retire in any year shall unless otherwise disqualified from continuing to be managers remain in office until the second Monday of December of that year and the managers nominated elected or appointed to fill the vacancies for the following term shall take office as on the second Monday of December in that year.

Extended
power of
investment.

17. Notwithstanding anything contained in the deed of constitution or the Act of 1851 the Board shall have full power to invest the moneys funds or capital of the Institution under their administration in any of the securities authorised by the Trusts (Scotland) Act 1921 or any enactments modifying or extending that Act.

Additional
powers of
Board.

18. Notwithstanding anything to the contrary contained in the deed of constitution or the Act of 1851 the Board shall have power and they are hereby authorised to support and clothe the inmates of the House of Refuge in such manner as they shall consider necessary and reasonable.

Deed of
constitution
and Act of

19. The deed of constitution as altered and amended by the Act of 1851 and the Act of 1851 shall stand and subsist in so far as their purposes are unexecuted and

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unfulfilled and shall have full force validity and effect in their respective articles clauses conditions declarations and provisions except in so far as the same are altered or modified by this Order. A.D. 1921.
—
1851 to remain in force.

20. All costs charges and expenses of and incidental to preparing for and promoting the Provisional Order applied for in the session of 1920 by the existing Board and refused or otherwise in relation thereto shall be a proper charge on the capital funds of the Institution. Costs of previous Order.

21. All costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid as to one half thereof out of the capital funds of the Institution and as to the other half thereof by the parish council of the parish of Montrose. Costs of Order.

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